TENANCY AGREEMENT

THIS LEASE is made the _____ day of _____ two thousand and (20).

Between

_____ **(Company Registration No._____)** a company incorporated in Singapore and having its registered office at _____ _____ (hereinafter referred to as "the Landlord") of the one part; and

And

_____ **(Company Registration No. _____)** a company incorporated in Singapore and having its registered office at _____ _____ thereinafter referred to as "the Tenant") of the other part.

WITNESSETH as follows:-

Demise, Term And Rent

1. In consideration of the rent and Tenant's covenants hereinafter reserved and contained, the Landlord hereby lets and the Tenant takes the premises situated at _____ ("the Premises") TO HOLD unto the Tenant for a term of **two (2)** years commencing from _____ **to** _____ (hereinafter referred to as "the term") YIELDING AND PAYING thereto unto the Landlord during the term and so in proportion for any period less than a month the monthly rent of **Singapore Dollars** _____ _____**Only (S$_____)** (hereinafter called "the rent").

The provisions of this paragraph shall continue to apply notwithstanding the expiry or earlier determination of this lease.

Payment of the rent for the Premises shall be payable monthly in advance without any demand deduction or setoff promptly on the [**1st**] **day** of each calendar month and proportionately for any period less than a calendar month **by crediting into the Landlord's _____ account as follows:-**

Bank: **[**_____]
Account: **[**_____**]**
Name: **[**_____]

Fitting Out Period

The Landlord shall subject to compliance by the Tenant of this Clause make available to the Tenant, the Premises for fitting out works by the Tenant at its own expense for a period of _____ **month commencing from** _____ **to** _____, free of rent (hereinafter referred to as "the fitting out period").

Delay in Fitting Out Period

No delay in carrying out and completing all or any of the fitting out works (including installation of the telephone and teleprinters) in or at the Premises, whether caused by any government and/or statutory authorities or otherwise, shall be a ground for postponing the commencement of the term of the lease or

relieve in any way the Tenant from the performance and observance of the covenants, conditions stipulations or agreements herein contained and on the Tenant's part to be performed and observed.

Partitions and Installations

Tenant shall carry out at its own expense the following fitting out works (if necessary):-

(i) Partition within the Premises;

(ii) All mechanical and electrical engineering works (apart from those originally supplied by the Landlord) including:-

(a) installation of all necessary electrical wiring, conduits, etc for additional power points, light fittings and all other fixtures and fittings;

(b) all alternation works relating to the existing ceiling fixtures and fittings for lighting, air-conditioning and fire protection devices; and

(c) all mechanical works of any kind whatsoever including, installation of water and other pipes, apparatus, fittings, fixtures and (where water is to be supplied to the Premises) all necessary plumbing.

Internal Fittings And Works

(iii) Provision of other approved floor and/or wall covering or finishes of whatever kind within the Premises.

For the purpose of any fitting out works:-

(i) the Tenant and its contractors shall co-ordinate their activities with and follow the instructions of the Landlord its agents and servants and shall be bound by the terms set by the Landlord and/or the Management Corporation of the building. The Tenant shall make good to the satisfaction of the Landlord any damage caused to the Landlord's fixtures and fittings or furniture (if any) arising from the Tenant's fitting out works or from any default, omission or negligence on the part of the Tenant and/or its contractors, and if the Tenant shall not, **within fourteen (14) days** after the date of such notice from the Landlord or such damage proceed diligently with the execution of such repairs or rectification works, then the Landlord may make good the same and the reasonable costs thereof (which shall include the costs of the Landlord's representatives in supervising such repairs or works) shall be a debt due from the Tenant to the Landlord and recoverable forthwith as such.

(ii) the Tenant shall keep the Premises clean and tidy and on completion of the Tenant's fitting out works shall remove therefrom all waste and debris to such place out of the Premises or such other place as the Landlord and /or the Management Corporation of the building will designate and shall pay to the cleaning contractor nominated by the Landlord and/or Management Corporation of the building the requisite fees for the removal of such waste and debris (if applicable). In the event of default by the Tenant to procure the removal of such waste and debris or to pay the said cleaning contractor as aforesaid, the Landlord may do so and the reasonable costs thereof (which shall include the costs of the Landlord's representatives in supervising such removal) shall be a debt due from the Tenant to the Landlord and recoverable forthwith as such.

(iii) the Tenant shall carry out the fitting out works during normal operating hours unless the Landlord and/or the Management Corporation of the building in its absolute discretion allows access at other times.

Approved Plans And Specifications

To use for carrying out any fitting out works, materials of such standard as to type, quality, colour and size as the Landlord, its architect engineer or consultant shall approve and cause the fitting out works to be carried out in the Premises in accordance with plans and specifications that shall have received the prior written approval of the Landlord (which approval shall not be unreasonably withheld), its architect engineer or consultant and the relevant governmental and/or statutory authorities. The fitting out works shall only be effected:-

(i) in the case of any mechanical, electrical, plumbing or air-conditioning works or installations, including installation of wiring, conduits, ducts, vents, pipes, appliances, apparatus, fixtures and fittings, by a contractor appointed by the Tenant and approved by the Landlord;

(ii) in all other cases by a contractor appointed by the Tenant and approved by the Landlord;

and in accordance with approved plans and specifications and the Tenant shall not make any additions, alternations or renovations to the fitting out works after completion thereof except with the prior approval in writing of the Landlord (such approval not to be unreasonably withheld). The fees of any architect, engineer or other consultant employed by the Landlord for the purpose of considering, approving and supervising the plans, specifications, materials and all works carried out by the Tenant and all other costs, charges and expenses incurred by the Landlord in connection therewith shall be borne by the Tenant and paid to the Landlord on demand.

Insurance required during fitting out period

Prior to the commencement of the fitting out works, the Tenant shall effect and maintain at the Tenant's cost and expense, comprehensive all risks insurance policies and public liability policies, covering the period from the date of commencement of the fitting out period to the date of completion of the fitting out works for insurable amounts acceptable to the Landlord with an insurance company approved by the Landlord naming the Landlord and the Tenant's fitting out contractor as the co-insured parties for their respective rights and interests.

Fitting Out Period To Form Part Of Term

In the event that the lease herein created is determined by the Landlord in consequence of the Tenant's breach of the terms and conditions applicable to the lease, then in addition to and without prejudice to any other rights or remedies of the Landlord, the Tenant shall compensate and pay to the Landlord on demand an amount calculated at the monthly rate equivalent to the rent which would have been applicable as if any fitting out period constituted part of the said term for the entire duration of the fitting out period.

Licence

The Tenant hereby acknowledges that until the commencement of the Term, the Tenant shall be in possession of the Premises at the Tenant's sole risk and responsibility and as a licensee thereof and the Tenant shall not without the prior written consent of the Landlord use the Premises for any purpose other than for the fitting out works. Notwithstanding that the term has not commenced, the Tenant shall nevertheless be bound by the terms, covenants and conditions set forth in this lease insofar as they are applicable and if any of the events set forth herein shall occur at any time prior to the commencement of the term, the Landlord in addition to and without prejudice to any other rights and remedies,

shall be entitled by giving written notice to the Tenant to that effect, to rescind its agreement to grant a lease of the Premises to the Tenant on the terms, covenants and conditions set out in this lease. Upon such rescission:-

(a) the Tenant's interest in and the rights in relation to the Premises shall cease and determine;

(b) (if the Tenant shall have taken possession of the Premises) the Tenant shall at its own cost and expense reinstate and restore the Premises to the original condition and if the Tenant fails to do so, the Landlord may effect the same at the Tenant's costs and expense and all costs and expenses incurred by the Landlord shall be paid by the Tenant to the Landlord **within seven (7) days** of demand from the Landlord, and in this connection, a certificate of the Landlord as to the amount of costs and expenses incurred shall be conclusive and binding on the Tenant; and

(c) the Tenant shall pay to the Landlord compensation and damages for the loss of Rent and Service Charge (payable by the Tenant had the term been completed), suffered by the Landlord consequential upon such rescission and the Landlord will retain all rights and remedies against the Tenant for the antecedent breach, non-observance or non-performance of its obligations under this lease.

Tenant to Indemnify Landlord

The Tenant shall keep the Landlord indemnified against:-

(a) the breach, non-observance or non-performance of any requisite consents in relation to the Tenant's fitting out works; and

(b) any claims, demands or proceeding brought by any adjoining owner, tenant, occupier or member of the public arising out of or incidental to the execution of the Tenant's fitting out works.

TENANT'S COVENANTS

2. The Tenant for itself/himself/herself, its/his/her successor-in-title and permitted assigns hereby covenants with the Landlord as follows:-

Payment of Rent

(1) To pay the rent hereby reserved at the time and in the manner aforesaid.

Deposit

(a) Upon the signing of this lease, the Tenant shall furnish to the Landlord (if the Tenant has not already done so) a security deposit equivalent to **_____ (____) months' rent amounting to Singapore Dollars [_____ _____] (S$_____) and one (1) month's advance rent of Singapore Dollars [_____ _____] Only (S$_____)**.

(b) The Deposit shall be held by the Landlord as security for the due performance and observance by the Tenant of all the provisions contained in this lease and subject to any deduction under the provisions of this lease (or to provision for contingencies as the Landlord shall consider reasonable) shall be refunded forthwith to the Tenant without interest upon the

expiration or sooner determination of the said term. PROVIDED ALWAYS that if during the Term or the Renewed Term, the Landlord shall transfer, assign, dispose of or part with all its estate, title or interest in the Premises or any part thereof to the Landlord's successor–in–title subject to the Term or the renewed term, the Tenant hereby agrees that the Landlord may assign and transfer the Landlord's rights to, and obligations in respect of, the Deposit to the Landlord's successor-in-title and thereupon the Tenant shall cease to have any right, claim or demand whatsoever against the Landlord in respect of the Deposit.

(c) If the Tenant shall commit a breach of any of the provisions of this lease the Landlord shall be entitled but not obliged to set-off the loss or expense to the Landlord occasioned by such breach from the Deposit and thereupon the Tenant shall on request by the Landlord deposit with the Landlord an amount equivalent to the sum set-off by the Landlord from the Deposit.

(d) Upon a breach by the Tenant of a provision of this lease and the lawful termination thereof by the Landlord whether by re-entry into the Premises or otherwise the **Deposit may notwithstanding any other provision in this lease, be forfeited to the Landlord** in its absolute discretion without prejudice to any other remedy which the Landlord may be entitled to in law and/or under the provisions of this lease.

(e) The Deposit shall at all times represent **[_____] (_____) months'** rent.

Taxes

(2) To pay all taxes (including taxes now or in the future imposed thereon) in respect of gas and other services consumed in respect of the Premises and the installation and hiring charges of any equipment and appliances in connection therewith.

Utilities Charges & Telephone Charges

(3) To pay all charges (including hiring charges and taxes thereon) in respect of all utilities, telephone, telex and/or other telecommunication devices installed in the Premises.

Goods & Services Tax

(4) To pay Goods and Services Tax on the rent and other monies payable, in the manner and within the period prescribed in accordance with the applicable laws, rules and regulations as notified by the Landlord.

Use

(5) Not to use or permit or suffer to be used the Premises for dwelling purposes or for any purpose other than **as [_____]** for the Tenant's business and the Tenant shall obtain and comply with all applicable licenses, permits and approvals in connection with such use.

Conduct of Business

(6) During the term to conduct the Tenant's business therein at all times in good faith and in a reputable manner and not commit or suffer or permit to be committed any illegal or unlawful act on the Premises.

Approvals by Relevant Authorities

(7) To obtain all approvals from the relevant authorities at the Tenant's own costs and expenses in respect of the approval for use of the Premises for the Tenant's trade or business and in respect of the installation and operation of all electrical and other appliances including telephone, telex,

telefax and any other telecommunication devices and to ensure that all approvals remain valid throughout the term.

Internal Partitioning Installations and Works

(8) Not to carry out within the Premises any installations, partitioning renovations or other works ("the renovations") except with the prior written consent of the Landlord and if the Landlord so consent, the Tenant shall carry out at the Tenant's own cost and expense the renovations using materials of such standards as to type, quality, colour and size as the Landlord shall approve and cause the renovations to be carried out in the Premises in accordance with plans and specifications that shall have received the prior written approval of the Landlord and the relevant governmental and/or statutory authorities. The renovations shall only be effected by a contractor approved by the Landlord and appointed by the Tenant and in accordance with approved plans and specifications and the completion thereof shall be subject to approval by the Landlord, its architects or engineers. The fees of any architect, engineer or other consultant employed by the Landlord for the purpose of considering, approving and checking the plans, specification, materials and all works carried out by the Tenant and all other reasonable costs, charges and expenses incurred by the Landlord in connection therewith shall be borne by the Tenant and paid by the Tenant to the Landlord on demand. No delay in carrying out and completing all or any of the renovations in or at the Premises whether caused by any governmental and/or statutory authorities or otherwise shall be a ground for postponing the commencement of the term or relieve in any way the Tenant from the performance and observance of the covenants, conditions, stipulations or agreements herein contained and on the Tenant's part to be performed or observed.

Prohibition of Damage

(9) Not to commit or permit or suffer any waste spoil or destruction in or upon the Premises nor to cut maim or injure or suffer to be cut maimed or injured any of the ceiling, walls, floors, principal girders, structures, wires, pipes, drains, appurtenances, fixtures or fittings thereof.

Internal Repairs

(10)(a) To keep the interior of the Premises, the flooring and interior plaster and other surface material or rendering on walls and ceilings and fixtures and fittings therein including doors, windows, glass, locks fastenings, electrical installations and every part thereof and all additions thereto clean and in good and tenantable repair (fair wear and tear excepted) and to replace or repair any part of the Premises and the fixtures and fittings therein which shall be broken or damaged.

(b) To be responsible for all electrical and plumber installations and maintenance and to pay for all fees, costs and expenses incurred therein.

Reimbursement of Agent's Commission

(11) Notwithstanding anything stated herein, the Tenant shall reimburse the Landlord for the agent's commission in the event that the term herein created is pre-maturely terminated for any reason whatsoever.

Notice of Damage

(12) To give notice forthwith to the Landlord of any damage that may occur to the Premises or of any damage to or defects in the water, pipes, electrical wiring or any other fittings, fixtures or other facility provided by the Landlord.

Access to Landlord

(13) To permit the Landlord with or without workmen and others at all times of the day to enter upon the Premises to examine the condition thereof and to ascertain that there has been no breach or non-compliance by the Tenant of or with his covenants herein contained and to pay the Landlord's costs of inspection or otherwise in respect of the preparation of any such notice and

further if the Landlord shall serve upon the Tenant notice in writing specifying the repairs and works necessary to be done by the Tenant in order to comply with his covenants herein contained and if the Tenant shall not **within seven (7) days** after the service of such notice proceed diligently with the execution of such repairs and works to permit the Landlord or its duly authorized agents to enter upon the Premises with or without workmen and others and execute such repairs the cost of which shall be a debt due from the Tenant to the Landlord and be forthwith recoverable by action.

Access to Landlord's Agents

(14) To permit the agents servants and workmen engaged or authorized by the Landlord and its respective surveyors, servants, agents and workmen at all times of the day to enter and remain in the Premises so far as may be necessary or useful in order to examine, repair or rebuild any adjoining or contiguous premises.

Obstruction of Light And Air

(15) Not to cover or obstruct or permit to be covered or obstructed in any manner or by any other article or thing, the windows, sky-lights or ventilating shafts or air inlets or outlets which reflect or admit light or enable air to flow into or out of the Premises.

Not to Assign And Sublet

(16) Not to assign sublet underlet licence or part with use or occupation of or part with or share the possession or occupation of the Premises or any part thereof irrespective of whether any rental or other consequence is given for such use or possession without first obtaining the written consent of the Landlord.

Compliance with Laws

(17) Not to do or permit anything to be done in the Premises which may infringe any law or bye-law or regulation for the time being in force affecting the Premises or such rules regulations or guidelines or any modifications thereof or additions thereto as may be imposed by the relevant authorities time to time for the proper running or management of the Premises.

Compliance with Notices

(18) To forthwith comply with any notice that may be given by the Landlord requiring any breach of any of the stipulations conditions and covenants on the part of the Tenant to be remedied.

Prohibition Against Alterations

(19) Not at any time to make or permit to be made alterations in or extension to or external projections in the front of the Premises or decorations or redecorations or renovations or to install any machinery, electrical wiring, electrical fittings or any other fittings in the Premises except with the previous consent in writing of the Landlord and in conformity with all relevant laws, bye-laws and regulations and any directions of any competent authority.

Offensive Trade

(20) Not to use the Premises for any illegal, offensive or immoral trade business occupation or purpose and not to do or permit or suffer to be done in the Premises anything which may be or become a nuisance disturbance, annoyance or inconvenience or give cause for reasonable complaint to the Landlord, its servants or agents.

Disposal of Rubbish and Refuse

(21) Not to throw dirt, rubbish, rags or other refuse or permit the same to be thrown into the sinks, lavatories, cisterns, waste, soil pipes or at or in any part of the Premises except in proper bins or other containers provided for the purposes and to keep all waste and refuse out of the public at all times and to dispose of or carry away the same in proper bins or receptacles to such place and at such times each day as may be prescribed by the Landlord.

Prohibition Against Heavy Equipment

(22) Not to bring upon the Premises any heavy machinery plant equipment or goods with an imposed load in excess of its permissible loading by the Management Corporation of the building without the written consent of the Landlord and in no event shall any such machinery plant or equipment or goods be of such nature or size as to cause or in the opinion of the Landlord be likely to cause any structural or other damage to the floor or walls or any other parts of the Premises.

No Auction and No Touting

(23) Not to advertise or hold or permit or suffer to be held any sales by auction in or upon the Premises and not to carry out any touting for business outside the Premises at any time.

Avoidance of Insurance Policies

(24) Not to do or suffer or permit to be done anything whereby the policy or policies of insurance against damage or loss by fire or other risks on the Premises may be rendered void or voidable or whereby the rate of premium thereof may be rendered void or voidable or whereby the rate of premium thereon may be increased and to make good all damage suffered by the Landlord and to repay the Landlord all sums paid by way of increased premiums and all expenses incurred by the Landlord in or about the renewal of such policy or policies rendered necessary by a breach or non-observance of this covenant without prejudice to any other rights of the Landlord.

Pests

(25) To take all reasonable precautions to keep the Premises free of rodents vermin insects pests and animals.

Insurance Policy

(26) To keep in force at its own expense during the term a public liability policy up to a minimum cover of **Singapore Dollars One Million (S$1,000,000.00)** or such other amount as the Landlord may from time to time in its absolute discretion decides, in respect of:-

(a) personal injuries to including death of third parties for injury or death;

(b) loss or damage to property belonging to third parties.

Dangerous goods And storage

(27) Not to bring upon or keep or permit or suffer to be brought or kept on the Premises or any part thereof or the land on which it is erected any goods or thing, material or liquid which in the opinion of the Landlord are of an obnoxious, dangerous, combustible, explosive or radio-active or offensive nature or which might increase the risk of fire or explosion or which might attack or in any way injure by percolation, corrosion or otherwise the Premises or the keeping or use of which may contravene any statue or local regulation or bye-law.

Infectious Illness

(28) In the event of any infectious illness occurring in the Premises forthwith to give notice thereof to the Landlord and to the proper public authorities and at the expense of the Tenant to thoroughly fumigate and disinfect the Premises to the satisfaction of the Landlord and such public authorities and otherwise comply with their reasonable and lawful requirements in regard to the same.

Information to Landlord

(29) Should the Tenant receive any notice from government or any governmental, public or other authority with respect to the Premises, to give notice thereof forthwith in writing to the Landlord.

Signs

(30) Not to affix, paint or otherwise exhibit or permit to be affixed, painted or otherwise exhibited on or upon any part or on the exterior of the Premises without the prior written consent of the Landlord and the relevant authorities where required by law, any signboard, announcement, placard, poster, advertisement, nameplate, flag, flagstaff or any other notice whatsoever including any lighting for the same.

Air-conditioning

(31) Where applicable, to maintain at the Tenant's own expense the air-conditioning system for the Premises at least once **every three (3)** months by a reliable and authorized contractor. Tenant to provide copy of air-conditioning maintenance contract & report to Landlord forthwith. Any replacement parts, costs of major repairs will be borne by the Landlord unless caused by the the negligence of the Tenant, its permitted occupier, occupants, employees, servants or invitees

Immigration Act

(32) Not to use, permit or suffer the said premises to be kept or used as a place or premises in which any person is employed in contravention of Section 57(1)(e) of the Immigration Act 1959 or any statutory modification or re-enactment thereof for the time being in force and to indemnify the Landlord against all costs, claims, liabilities, fines or expenses whatsoever which may fall upon the Landlord by reason of non-compliance thereof. If the Tenant shall breach or fail to observe any obligation covenant or condition contained therein, this Agreement shall terminate immediately without prejudice to any other remedy the Landlord may have in law or equity against the Tenant for the said breach.

Tenant's Indemnity

(33) To indemnify and keep the Landlord indemnified and hold harmless the Landlord from and against all actions, claims, demands, losses, damages, costs and expenses for which the Landlord shall or may suffer or shall or may be or become liable in respect of and to the extent that they arise from:-

(a) the act, default, negligence, misuse, waste or abuse by the Tenant or any servant, agent, customer or invitee of or any other person claiming through or under the Tenant of the water, electricity and the lighting and other services, facilities and appurtenances of the Premises;

(b) overflow or leakage of water (including running water) in or from the Premises but having originated within the Premises but caused or contributed to by any act or omission on the part of the Tenant, their servants, agents, sub-tenants or other persons as aforesaid;

(c) loss, damage, or injury from any cause whatsoever to property or person caused or contributed to by the use of the Premises by the Tenant or occasioned or contributed to or by any act, omission, negligence, breach or default of the Tenant, or any servant, agent, sub-tenant, invitee or other persons as aforesaid.

(d) or as a result of the failure on the part of the Tenant to perform and observe all or any of the provisions of this lease.

Viewing of Premises

(34) (a) To permit the Landlord at any time during the last **six (6) months** of the term or if there is earlier determination of this lease during the last month of the term to affix and retain without interference upon any suitable part(s) of the Premises notice(s) for re-letting the same and to permit all persons with written authority from the

Landlord or the Landlord's agents at reasonable times of the day to view the Premises by prior appointment only.

(b) To permit the Landlord or its agents from time to time at all reasonable times to enter upon the Premises by prior appointment only together with potential or prospective purchaser for the purpose of viewing the Premises.

Determination

(35) On expiry or earlier determination of the term to peaceable and quietly deliver up to the Landlord the Premises in like condition as the same were delivered to the Tenant at the commencement of the term, fair wear and tear excepted, provided that any damage defect or dilapidation occasioned by fair wear and tear shall not give rise to, cause or contribute to any substantial damage to the Premises, and all additions, improvements and renovation made thereto in the meantime and all fixtures (other than the Tenant's or trade fixtures or fittings) of every kind in or upon the Premises or which during the term may have been affixed or fastened to or upon the same and in accordance also with the covenants and conditions contained or imposed in or by virtue of any licence granted by the Landlord herein and prior to the termination of the term shall be dealt with as follows:-

(a) in the event of any of the Landlord's fixture and fittings which are missing, broken, damaged (fair wear and tear excepted) or destroyed, the Tenant is to forthwith replace them with others of a similar character and of equal value;

(b) in the event of any alterations having been made to the Premises during the term the Tenant is to reinstate the Premises to the condition in which the same were prior to the making of such alterations (fair wear and tear excepted) and in any event to remove any lettering, moulding, sign, writing or painting of the name or business of the Tenant from the Premises and all internal partition fixtures and installations of the Tenant other than those specified by the Landlord and to reinstate all electrical and other installations to their original state (other than those specified by the Landlord) to the satisfaction of the Landlord (fair wear and tear excepted). Such removal/installation shall be carried out by a contractor approved by the Landlord and under the supervision of the Landlord's architects, engineer or consultant and the Tenant shall pay for all reasonable fee and expenses of such architect, engineer or consultant. The Tenant is to make good all damage done to the Premises by such removal and if the Tenant fails to do so the Landlord may make good all damage. All costs incurred by the Landlord in connection with such removal or disposal or in making good such damage shall be paid by the Tenant to the Landlord on demand.

(c) to redecorate the Premises to the satisfaction of the Landlord with two coats of good quality oil or emulsion paint and appropriate treatment of all internal parts of the Premises in good workmanlike manner.

(d) generally as nearly as possible to restore the Premises to its original state and condition prior to the Tenant's occupation thereof (fair wear and tear excepted).

Interest

(36) To pay interest upon the rent and other sums due to the Landlord under the stipulations, conditions and covenants of this lease which are outstanding for **seven (7) days** after the said monies are payable to the Landlord from the due date until the date of actual redemption by the Landlord. The interest is to be calculated from day to day at the rate of **two per cent (2%)** per month. The Landlord shall be entitled to recover such interest from the Tenant as if such interest were rent in arrears.

Lodgment of Caveat, Registration of lease And subdivision

(37) Not to register this lease nor lodge any caveat in respect of this Lease at the Singapore Land Authority, whether before or during the continuance of the Term.

LANDLORD'S COVENANTS

3. The Landlord hereby covenants with the Tenant (subject to the payment by the Tenant of all the rent and provided that the Tenant has complied with all the obligations and conditions on the part of the Tenant to be performed and observed) as follows:-

Quiet Enjoyment

(1) That the Tenant shall peaceably hold and enjoy the Premises during the term without any interruption by the Landlord or any person rightfully claiming under or in trust for the Landlord.

Property Tax

(2) To pay all property tax in respect of the Premises.

Insurance

(3) To insure the said premises against loss or damage by fire and to pay all premiums thereon.

OTHER TERMS AND CONDITIONS

4. Provided always and it is hereby agreed as follows:

Premises Destroyed

(1) In the event the Premises shall be destroyed or rendered untenantable by fire through no default of the Tenant or other unavoidable cause, the Landlord may at its option restore the Premises to their previous condition, and in the meantime the monthly rent shall be abated in the same proportion as the untenantable portion of the Premises bears to the whole thereof; but unless the Landlord, **within sixty (60) days** after the happening of such event or casualty shall notify the Tenant of its election to so restore the Premises, this lease shall thereupon be deemed to have been terminated by mutual consent of the parties hereto upon the expiry of the said period.

Forfeiture

(2) If the rent hereby reserved or any part thereof or any other sums payable to the Landlord shall at any time be unpaid for **seven (7) days** after the same shall have become due (whether any formal or legal demand therefore shall have been made or not) or if any covenant on the part of the Tenant herein contained shall not be performed or observed or the Tenant shall have a winding up order made against it or if the Tenant shall make any arrangement with creditors for liquidation of its debts by composition or otherwise of suffer any distress or execution to be levied on the Premises or the contents thereof then and in any such case the Landlord or its agents may forthwith (or at any time thereafter) re-enter upon the Premises or any part thereof in the name of the whole

whereupon the term shall absolutely determine but without prejudice to any rights or remedies which may have then accrued to the Landlord in respect of arrears of rent or other subsisting breach of any condition or covenant on the part of the Tenant herein contained. **Upon re-entry all fixtures and fitting in the Premises shall be retained by the Landlord and the Landlord shall be entitled to forfeit the Deposit.**

Removal of Stock-in-trade

(3) The Landlord may upon re-entry or determination of the lease remove from the Premises any item of any description found in the Premises (hereinafter referred to as "the said items") including but without limiting the generality of the foregoing all plant equipment, stock-in-trade and fittings and fixtures of the Tenant. The said items may be stored in a warehouse or in such other place as the Landlord shall decide at the cost of the Tenant and if the Tenant does not remove the said items within **one (1) week** from the date of notification to the Tenant, the Landlord shall have the right to dispose of the said items in any way as the Landlord shall deem fit. The Landlord shall not be deemed guilty of conversion or be liable for any loss or damage occasioned by such removal, storage or disposal. Any costs incurred by the Landlord in or about such removal, storage and/or disposal shall be paid by the Tenant to the Landlord upon demand.

Waiver

(4) Neither the acceptance of rent nor any other act or omission of the Landlord at any time or times after or in pursuance of any breach of any covenant condition or duty of the Tenant on his part to perform or observe shall be construed or operate as a waiver either expressed or implied of the said or any future breach of the same or any other covenant condition or duty or stop the Landlord from exercising at any time its powers under **Clause 4(2)** herein, and shall not prejudice in any way the rights powers and remedies of the Landlord herein contained.

Notices

(5) Any notice to the Tenant shall be sufficiently served if left addressed to the Tenant at the Premises or sent to the Tenant at the Premises by registered post or any of the address stated above. Any notice to the Landlord shall be sufficiently served if delivered to it or sent to it by registered post at its address stated above.

Landlord not Liable

(6) Notwithstanding anything herein contained the Landlord shall not be liable to the Tenant nor shall the Tenant be relieved of its obligations or have any claim against the Landlord in respect of:-

(a) any interruption in respect of the supply and/or service of water electricity gas in and/or the Premises or in connection with the maintenance and upkeep of the services hereinbefore mentioned (if any) for the use of the Tenant by reason of any necessary repair or maintenance of any installation apparatus machinery or equipment or damage thereto or destruction thereof by fire water Act of God or other causes beyond the Landlord's control or by reason of mechanical or other defect or breakdown or inclement conditions or unavoidable shortage or failure of supply of electricity or water or other services and amenities or labour disputes; or

(b) any damage injury or loss to persons or property sustained by the Tenant, their servants agents licensees or invitees caused by the Premises or any appurtenances thereto arising out of any leakage or overflow or by any cause of whatsoever nature due to

any unforeseeable defect to the piping wiring fire-fighting or sprinkler system water sanitary or gas;

(c) installation or by theft in the Premises; and

(d) any loss or injury to the Tenant's servants employees customers patrons visitors invitees or licensees sustained within the Premises and the Tenant hereby indemnifies the Landlord against such claims.

Sale of Premises

(7) In the event of the successful collective sale of the Premises and a notice is received from the developer (or its authorised representative) to vacate the Premises, the Landlord shall serve the Tenant with **three (3) months'** written notice of termination this Agreement. The Tenant shall vacate the Premises upon the expiry of the **three (3) months'** written notice and shall not be entitled to any monetary compensation for termination of this Agreement. For the avoidance of doubt, the termination of this Agreement under this clause shall be without prejudice to the Landlord's rights accrued prior to the termination under this Agreement or at law.

Landlord's Right Of Assignment

(8) The Landlord shall be entitled to assign all or any part of the Landlord's interest under this lease to any such assignee with notice to the Tenant and subject to the Tenant's consent, which consent shall no be unreasonably withheld. Provided that the security deposit has been duly transformed to the Assignee and/or the banker's guarantee (if any) to the Landlord has been duly cancelled, all the Landlord's covenants and obligations under this lease shall cease upon assignment and the Tenant hereby agree upon such assignment to release the Landlord from all the Landlord's covenants and obligations herein including the covenant to refund the deposit.

Condition of Premises

(9) The Tenant acknowledges and declares that no promise representation warranty or undertaking has been given by or on behalf of the Landlord in respect of the suitability of the Premises for any business to be carried on therein or to the fittings, finishes, facilities and amenities of the Premises.

Legal fees and Stamp duty

(10) (a) The Tenant shall bear the stamp duty of this lease and all legal fees (including the Landlord's solicitors' charges on a solicitor and client basis) in connection with any surrender or other termination thereof otherwise than by effluxion of time.

(b) The Tenant shall pay all the Landlord's reasonable legal costs and fees on a full indemnity basis incurred by the Landlord in consulting solicitors and/or in enforcing any provision of this lease in the event of a breach by the Tenant of any of the clauses stated in this Lease.

Holding over

(11) If the Tenant continues to occupy the Premises beyond the expiration or determination of the said term or fails to deliver vacant possession thereof to the Landlord after determination of the term with the Landlord's acquiescence and without any express agreement between the Landlord and the Tenant, the Tenant shall do so as a monthly tenant and the Tenant shall pay to the Landlord for every month of such holding over double the rent payable as provided in **Clause 1** herein monthly in advance, the first payment to be made on the day following the date of expiration of this lease and such holding over shall not constitute

a renewal of this lease and there shall be no renewal of this lease by operation of law. During this period of holding over all provisions of this lease shall be and remain in full force and effect. Such lease shall be determinable at any time by either the Landlord or the Tenant giving to the other party **thirty (30) days'** notice in writing. The inclusion of this sub-clause in this lease shall not be construed as the Landlord's consent for the Tenant to hold over after the expiration or determination of the Term.

Removal of property after determination of Term

(12) (a) If at such time as the Tenant has vacated the Premises after the determination of this lease, any property of the Tenant shall remain in or on the Premises and the Tenant shall fail to remove the same within **seven (7) days** after being requested by the Landlord so to do by a notice to that effect then the Landlord shall be entitled and shall be deemed to be authorized by the Tenant to deal with and to dispose of such property in any manner as the Landlord deems fit and all costs and expenses incurred by the Landlord in effecting such disposal shall be recoverable from the Tenant with interest from the date of expenditure until the date they are paid by the Tenant to the Landlord.

(b) The Tenant shall indemnify the Landlord against any liability incurred by it to any third party whose property shall have been dealt with or disposed of by the Landlord in the bona fide mistaken belief (which shall be presumed unless the contrary is proved) that such property belonged to the Tenant and was liable to be dealt with as such pursuant to this clause.

Option to Renew

(13) The Landlord shall at the written request of the Tenant made not less than **three (3) months** before the expiration of the term hereby created and if there shall not at the time of such request be any existing breach or non-observance of any of the covenants on the part of the Tenant herein contained, at the Tenant's expense grant to the Tenant a further term of **[xx] (xx) year** commencing from the first day after the expiry of the term in respect of the Premises ("Renewed Lease"). The new lease must be signed by the Tenant at a date not less than **two (2) months** before the expiration of the term and shall be on the following terms:-

(a) the rent shall be at the prevailing market rate to be mutually agreed at the commencement of the renewed term**;** and

(b) the new lease shall be on the same terms and covenants as this Lease, save for the clause on rent and this clause on renewal which shall be specifically excluded.

Exclusion of Implied Terms

(14) The covenants conditions stipulations provisions terms and agreements herein cover and comprise the whole of the agreement between the parties hereto or their appointed agents and the parties hereto expressly agree and declare that no further or other covenants conditions stipulations provisions terms or agreements whether in respect of the Premises or otherwise shall be deemed to be implied herein or to arise between the parties hereto by way of collateral or other agreement by reason of any promise representation warranty or undertaking given or made by either party hereto to the other on or prior to the execution hereof and the existence of any such implication or collateral or other

agreements is hereby negatived.

Severability	(15)	If any one or more of the provisions contained in this lease shall be deemed invalid, unlawful or unenforceable in any respect under any applicable law, the validity, legality and enforceability of the remaining provisions contained herein shall not in any way be affected or impaired.
Governing Law	(16)	This lease shall be governed by and construed in accordance with the laws of Singapore.
Marginal Notes	(17)	The marginal notes appearing in this lease are inserted only as a matter of convenience and in no way define, limit, construe or describe the scope or intent of the sections or clauses of this lease nor in any way affect this lease.
First Right of Refusal to Purchase	(18)	Subject to clause 4(7) and provided that the Tenant is not in breach of any of the terms of this Agreement, the Landlord shall grant the Tenant the right of first refusal to purchase the Property at such price and on such terms as the parties shall mutually agree in the event the Landlord wishes to sell the Property.

INTERPRETATIONS AND DEFINITIONS

Interpretations And Definitions

5. In this:-

(a) "Landlord" includes its successors or assigns and where the context admits includes the owner for the time being of the Premises;

(b) reversion expectant on the terms hereby created;

(c) "Tenant" includes its successors or permitted assigns;

(d) words importing the singular number shall include the plural and the masculine gender the feminine or neuter and vice versa and words importing persons shall include companies.

FOR COMPANIES

SIGNED by the Authorised Signatory)
of the **Landlord**)
in the presence of:-)

_____
(Sign and Affix Company Rubber Stamp)

Name:
NRIC No:
Designation:

_____
Name:
NRIC No:
Address

FOR INDIVIDUALS

SIGNED by the **Landlord**)
in the presence of:-)

_____
Name:
NRIC No:

_____
Name:
NRIC No:
Address

FOR COMPANIES

SIGNED by the Authorised Signatory)
of the **Tenant**)
in the presence of:-)

_____
(Sign and Affix Company Rubber Stamp)

Name:
NRIC No:
Designation:

_____
Name:
NRIC No:
Address

FOR INDIVIDUALS

SIGNED by the **Tenant**)
in the presence of:-)

_____
Name:
NRIC No:

_____
Name:
NRIC No:
Address

DATED THIS DAY OF 20

Between

[_____]

And

[_____]

LEASE OF [_____]